

Court No. - 40

Case :- WRIT - C No. - 38012 of 2022

Petitioner :- Sanjay Kumar Yadav

Respondent :- State Of U P And 3 Others

Counsel for Petitioner :- Indrakesh Kumar Sharma, Sanjay Kumar Singh

Counsel for Respondent :- C.S.C., Chandra Shekhar Singh

Hon'ble Mahesh Chandra Tripathi, J.

Hon'ble Vivek Kumar Singh, J.

Heard learned counsel for the petitioner and learned Standing Counsel and Sri Chandra Shekhar Singh, learned counsel for respondent no.4.

By means of the present writ petition, the petitioner is challenging impugned demand notice dated 28.1.2022 (6 to the writ petition) issued by respondent no.4/The Executive Engineer, Viduyat Vitran Nigam Limited, Khalilabad, Sant Kabir Nagar claiming recovery of Rs.16,94,099/- from the petitioner.

Sri Chandra Shekhar Singh, learned counsel for respondent nos.4 raised a preliminary objection regarding maintainability of the present writ petition on the ground that the Uttar Pradesh Electricity Supply Code, 2005 is a Code in itself. He submits that since the present matter relates to theft and unauthorized use of electricity, the petitioner has an efficacious remedy to file an appeal under Provision 6.5 of the Uttar Pradesh Electricity Supply Code, 2005.

Considering the objections, so raised by learned counsel for the Corporation, we are not inclined to entertain the writ petition. The petitioner has an efficacious remedy to take recourse under Provision 6.5 of the Uttar Pradesh Electricity Code, 2005. It is always open for the petitioner to avail the remedy available to him under the Code, 2005. The Court hopes and trusts that the competent authority shall proceed with the matter strictly in accordance with law.

With the aforesaid observations and leave, the present writ petition stands disposed of.

Order Date :- 2.1.2023

Dev/-